

Judicial Review – Vulcan County Bylaw 2026-007 Timeline

1985 Vulcan County adopts planning policies recognizing Environmentally Sensitive Areas (ESAs).

- ESA protections have existed for decades.
- Environmental constraints were not created in response to this application.

2014 Yetwood Farms purchases the subject lands.

- Existing regulatory framework in place when purchasing the property.

March 11, 2026 Council gives First Reading to Bylaw 2026-007.

- Motion led by Doug Logan, District 7 Counsellor

March 11, 2026 Motion to extend public notification to a two-mile radius fails.

- Council was aware that the Southern Alberta Bible Camp and the Little Bow Resort were directly affected yet they chose not to expand notification. Why was that?
- Doug Logan voted against notifying residents in his own district.
- Regional users of the Travers Reservoir were also not given proper notice. For context, this is one of the largest recreational lakes / reservoir in Southern Alberta. It has tens of thousands of visitors per year from all over – Calgary, Lethbridge, Medicine Hat, Strathmore, etc.
- Public notice was given through the Vulcan County Facebook page. No regional advertisement, no public signs by the site or Provincial Campgrounds. Nothing beyond a Facebook post.

April 1, 2026 First Public Hearing held – approximately four hours.

- Large number of residents attended opposing the development. Attendance was so large that an overflow room had to be used where there were major AV issues causing frustration for the attendees.
- Only one Councillor asked any questions – Christopher Northcott.
- The County had to redo the hearing due to procedural issues.

June 10, 2026 Second Public Hearing held (approximately five hours).

- Only one councillor asked any questions – Christopher Northcott

June 11, 2026 ORRSC issues the report entitled *Planning Analysis of Location Suitability – Response to Matters Raised at Public Hearing*.

- Report is dated one day after a five-hour public hearing that ended around six pm that night.

June 17, 2026

Administration presents the Request for Decision to Council.

Administration advises the redesignation itself does not have to comply with the 1.6 km setback because future industrial development may seek a variance. Administration advises that future setback reductions could approach approximately 75%.

- Public was not notified of this prior.

June 17, 2026

Council reduces the redesignated lands from approximately 850 acres to 595 acres.

- Neither the applicant nor the public had an opportunity to comment on the revised proposal.

Councillors Northcott and Gateman state additional information is required before Council proceeds.

Jodie Gateman, Division 1 Councillor quote from audio recording at the meeting:

*So, although I agree that there's a lot of questions that are kind of unanswered for the size and scope that we're looking at today, I have to say that I don't believe that -- I know the community benefit and the taxes have all been talked about, but **good planning should never be for sale. We should not be looking at tax revenue as a decision to rezone something. We should not be looking at a benefit fund for any type of community. In my mind, that's almost considered a bribe.** So, I will be wanting to -- in my mind, that is a negative for this particular item at this time. For rezoning, it -- **we should be looking at compatibility, we should be looking at long-term planning, environmental protections, things like that,** but not at an actual - again, we talk about the fact this this proposal of the project is speculative. So, I wouldn't be taking speculative revenue into consideration.*

Christopher Northcott website: <https://christophernorthcott.com/remarks-regarding-bylaw-2026-007/>

(The following was delivered during the discussion of Bylaw 2026-007 at the Regular Meeting of Vulcan County Council on June 17, 2026.)

If this rezone proceeds, **it will be the largest single contiguous tract of land designated as Rural Industrial in Vulcan County.** This is a substantial re-consideration of our zoning that will be

precedent setting for Vulcan County as a whole and for this specific area. As we learned from our Public Hearing on June 10th, an overwhelming majority of participants in the Public Hearing are opposed. While there may well be others out there who are favourable to the proposed redesignation, their silence suggests indifference or lack of vested interest. That is not the case for a significant number of residents and property owners from Little Bow Resort who have been contributing ratepayers of Vulcan County for many years. **They rightly point out that our own bylaws require us to ensure that the impacts of any re-zoning and development permit applications that could negatively harm them are mitigated. Given the scale of the proposed redesignation, these impacts are not sufficiently understood to warrant redesignation.**

Furthermore, we should appreciate the precedent setting nature of such an action, especially outside the context of the Municipal Development Plan review that occurred last year. That review undertook significant public engagement, engagement where no stakeholders came forward at that time to propose such a significant re-imagining of this area. If they had, County Council could have contemplated what assessments it would want under its broad discretionary authority, prior to redesignation, to provide appropriate municipal leadership.

Council gives Second and Third Reading to Bylaw 2026-007. It is approved.